



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2025-027

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-013 First Amendment to the Law-Making and the Production of Documents and Testimony Act of 2017.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On August 09, 2025, the Legislature passed a Bill entitled, "First Amendment to the Law-Making and the Production of Documents and Testimony Act of 2017." (Resolution KL-CY-2025-013); and,

WHEREAS, On August 20th, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-013 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-013 First Amendment to the Law-Making and the Production of Documents and Testimony Act of 2017.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2025-00X was duly voted and approved upon by the Legislature on September 13, 2025, at a Legislative Regular Session CI-(101) with a vote of (7) in favor and (0) opposed, (0) abstaining, and (0) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.



Michael Primus
Speaker of the Legislature

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2025-027

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			

KIOWA TRIBE RESOLUTION NUMBER KY-CY-2025-013

STATEMENT BY THE LEGISLATURE REGARDING VETO OVERRIDE

The first reason for veto that the Chairman gives is that this amendment expands the subpoena power to everyone in the Executive branch. This is not accurate. The amendment does not change the persons in the Executive Branch who are, and who for 8 years have been subject to the Legislature's subpoena power. This amendment extends the subpoena power to persons outside the executive branch. Consequently, the Chairman's reason for the veto is faulty and is not given any weight, and is rejected.

The Chairman urges that the Subpoena power extends to "discretionary and constitutionally protected duties" of the Executive Branch. It fails to even attempt to identify what amendment somehow does this. There is no merit to this objection and it is rejected.

The Chairman states that the amendment allows the legislature to unilaterally determine the scope "of lawful reasonableness." To the extent this is an objection to the reasonableness of a legislative subpoena, nothing in the amendment does what the Chairman objects to here, and there is no merit to this basis for the veto.

The Chairman complains that the amendment does not apply the Rules of Civil Procedure. Such rules only apply to Courts, and the Legislature is not a Court. Consequently, there is no merit to this objection and it is rejected.

While the Chairman says that the Legislature has to abide by Section 1.5 of the law, nothing in the amendment changes the legislature's duty under Section 1.5. And, while the Chairman rattles the sword of litigation, and complains about the recent subpoenas, he did not see fit to even object to the recent subpoenas, and was able to amicably work with the legislature on the production of documents sought. Consequently, not only is there no legal support for the objection, the example the Chairman provides undercuts his argument.

There is no meritorious argument for the Chairman's veto.

Additionally, the Legislature is including the attached letter from Legislature Rosario regarding concerns about effects on smaller vendors of the Tribe. The Legislature does not intend that the Resolution would interfere with any vendor's ability to do business with the Tribe, it merely allows the Legislature (when relevant) to request documents and information from vendors to conduct its own legislative and oversight business.

Dear legislators,

I am writing to request formal clarification and protection for small tribal craft vendors regarding Resolution KL-2025-013, Section 1.9, which subjects contracting parties to subpoena power of the legislature.

ISSUE:

Section 1.9 states that "any person or entity who contracts with the tribe, including any department, whether verbally or in writing, shall be subjected to the subpoena power of legislature as a contracting party under this act. Any Indian, or Indian owned business, who receives a discretionary disbursement from the tribe shall be considered a contracting party for the purpose of this act."

CONCERN:

Our tribal citizens who operate small crafting businesses—including those who create beadwork, traditional crafts, and baked goods—should not fall under this broad contracting clause. These vendors:

- Depend on tribal sales as their immediate income source
- Sell frequently to the tribe and its departments, particularly at AOA during paycheck periods
- Sell inter-departmentally and at the tribal gift shop/ casino gift shop
- Provide traditional wears and cultural items to our tribal employees
- Should not face additional obstacles when conducting daily business with the tribe

REQUEST FOR PROTECTION:

These small tribal craft vendors are not the intended tribal businesses this resolution seeks to regulate. I respectfully request that the Tribal Legislature formally clarify that small tribal craft vendors who sell traditional items, beadwork, crafts, and food goods directly to tribal departments are:

1. Exempt from the subpoena power provisions in Section 1.9
2. Protected from being classified as "contracting parties" under this act when conducting routine sales
3. Recognized as essential cultural vendors who require support, not additional regulatory burden

These vendors preserve and share our traditional culture while providing vital income for tribal families. They deserve protection and support, not subjection to legislative subpoena powers for their small-scale, culturally significant business activities.

I request this matter be addressed promptly to ensure our cultural vendors can continue their important work without fear of unintended legal consequences.

Respectfully,

Kiowa Tribe Legislator District 5

Tiya Rosario

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